

26TRCV254 26TRCV254

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-29

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Case Number: 26TRCV254 Hearing Date: July 29, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

XIOMARA
J KING FERGUS,

Plaintiff

Case No.:

26TRCV00254

vs.

[Tentative]
RULING RE:

DEMURRER
TO PLAINTIFF'S FIRST AMENDED COMPLAINT

FORD

MOTOR COMPANY; SOUTH BAY FORD INC.; and DOES 1-10, inclusive,

Defendants.

Hearing

Date: July 29, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiff's First Amended Complaint

Moving

Party: Defendants

Ford Motor Company and South Bay Ford, erroneously sued as South Bay Ford, Inc.

Responding Party: Plaintiff Xiomara J. King Fergus

RULING

The court

considered the moving papers, opposition, and reply. Defendants' Demurrer to Plaintiff's FAC is SUSTAINED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On February 21, 2025, Plaintiff Xiomara J King Fergus ("Plaintiff") filed a complaint against Defendants Ford Motor Company, South Bay Ford Inc., and DOES 1 through 10, inclusive (collectively, "Defendants"), alleging six causes of action for: (1) Violation of Civil Code Section 1793.2(d); (2) Violation of Civil Code Section 1793.2(b); (3) Violation of Civil Code Section 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement – Concealment.

On July 22, 2025, Plaintiff filed a first amended complaint ("FAC") against Defendants, alleging the same six causes of action.

On June 24, 2026, Defendants Ford Motor Company and South Bay Ford (collectively,

“Defendants”) filed the instant demurrer. On July 16, 2026, Plaintiff filed an opposition. On July 22, 2026, Defendants filed a reply.

FACTUAL BACKGROUND

Plaintiff

alleges that on January 8, 2016, Plaintiff entered into a warranty contract with Defendant Ford Motor Company regarding a 2016 Ford Explorer (the “Subject Vehicle”). (FAC, ¶ 7.) Plaintiff alleges that Plaintiff purchased the Subject Vehicle from Defendant Ford Motor Company’s authorized retail dealership, Norm Reeves Ford Superstore. (FAC, ¶ 9.) Plaintiff alleges that between February 24, 2018 and December 20, 2023, Plaintiff presented the Subject Vehicle to Defendant Ford Motor Company’s authorized repair facility on four separate occasions with complaints concerning the Subject Vehicle “jerking while stopping,” “skipping when slowing down, and erratic shifts,” the Subject Vehicle’s engine fan, the Subject Vehicle “jerking into gear, slipping in gear,” and the Subject Vehicle’s malfunctioning indicator light and a coolant leak. (FAC, ¶¶ 12-15.) Plaintiff alleges that Plaintiff has continued to experience defects in the Subject Vehicle, despite Defendant Ford Motor Company’s representation that the defects had been repaired. (FAC, ¶ 16.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her.¿(Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)¿

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When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A

demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendants demur to each of the causes of action in Plaintiff's FAC. Defendants argue that Plaintiff's first three causes of action are time-barred by the six-year statute of repose established by Code of Civil Procedure Section 871.21(b), because the FAC alleges that Plaintiff purchased the Subject Vehicle and received delivery of the Subject Vehicle in 2016, but Plaintiff did not file suit until 2025. Defendants argue that Plaintiff's fourth cause of action is also time-barred because it accrued on the date of Plaintiff's purchase of the Subject Vehicle and expired four years later in 2020. Next, Defendants argue that Plaintiff's sixth cause of action is barred by the applicable three-year statute of limitations and further argue that the FAC does not allege facts specific enough to satisfy the heightened pleading standard applicable to fraud causes of action. Defendants also argue that Plaintiff's sixth cause of action fails because the FAC does not allege the requisite transactional relationship to trigger a duty to disclose, and because Plaintiff's Fraudulent Inducement – Concealment cause of action is barred by

the economic loss rule. Finally, Defendants argue that Plaintiff's fifth cause of action is also barred by the economic loss rule.

Opposing Party's Argument

Plaintiff argues that the time limits established by Code of Civil Procedure Section 871.21 do not apply here because Defendants are attempting to apply the statute retroactively, which violates due process. Plaintiff argues that actions filed prior to July 1, 2025 are not affected by the statute of limitations established by Section 871.21, and that the time limits were otherwise tolled by the delayed discovery rule. Plaintiff argues that the FAC alleges all essential elements of a cause of action for Fraudulent Inducement – Concealment, because Defendants formed a transactional relationship with Plaintiff through retail sales of vehicles to consumers. Plaintiff argues that the economic loss rule does not bar Plaintiff's Fraudulent Inducement – Concealment or Negligent Repair causes of action because case law establishes that the economic loss rule does not apply to fraudulent inducement causes of action, and Plaintiff's Negligent Repair cause of action is based on the parties' contractual relationship.

Reply Argument

Defendants argue that CCP Section 871.21 is not being retroactively applied here, because CCP 871.21 is a statute of repose, and Plaintiff's complaint was filed in February of 2025, after the statute's effective date of January 1, 2025. Defendants argue that CCP Section 871.21 applies to all cases filed on or after January 1, 2025, and further argue that statutes of repose are not subject to equitable tolling. Next, Defendants argue that Plaintiff's implied warranty claim and inadequate literature/parts claim are barred by CCP 871.21, because Plaintiff has standing to assert a claim under Civil Code Section 1793.2(a)(3) through Civil Code Section 1794, which is covered by CCP Section 871.21. Defendants argue that Plaintiff's fraudulent concealment claim is time-barred because the applicable limitations period of three years, and Plaintiff has not alleged the requisite transactional relationship to trigger a duty to disclose. Finally, Defendants argue that Plaintiff's negligent repair cause of action fails because the economic loss rule applies.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Here, Defendants’ counsel declares that on July 29, 2025, Defendants’ counsel met and conferred with Plaintiff’s counsel “via video conferencing regarding Defendants’ intended Demurrer to the Complaint, including the specific grounds for the Demurrer.” (Liu Decl., ¶ 2.)

Given that the instant demurrer is responsive to Plaintiff’s FAC rather than to Plaintiff’s original complaint, the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of Defendants’ instant demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B.

First, Second, and Third Causes of Action: Violations of Civil Code Section 1793.2

Defendants argue that Plaintiff’s first three causes of action are time-barred by Code of Civil Procedure Section 871.21(b).

Code of Civil Procedure Section 871.21 states:

“(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.”

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.”

(Code Civ. Proc. Section 871.21.)

Here, Plaintiff alleges that the Subject Vehicle was purchased on January 8, 2016. (FAC, ¶ 7.) As noted by Defendants, Plaintiff did not file the original complaint until February 21, 2025, approximately nine years after the date of the original delivery of the Subject Vehicle.

Plaintiff argues that Song-Beverly Act claims filed before July 1, 2025 are unaffected by Section 871.21. The court notes that Plaintiff's original complaint was filed on February 21, 2025. However, while Section 871.21 was subsequently amended to include an opt-in framework for manufacturers, Code of Civil Procedure Section 871.30 clarifies that where a manufacturer has made such an election, Section 871.21 applies to claims filed on or after January 1, 2025. (Code Civ. Proc. Section 871.30(c).)

Next, Plaintiff argues that the time limits established by Section 871.21 do not apply to inadequate literature/parts claims under Civil Code Section 1793.2(a)(3). However, Plaintiff has standing to assert a cause of action under Civil Code Section 1793.2(a)(3) through Civil Code Section 1794, which states that "[a]ny buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code Section 1794(a).) Civil Code Section 1794 is expressly included in the text of Code of Civil Procedure Section 871.20, and thus the court is unpersuaded by Plaintiff's argument.

Plaintiff also argues that the retroactive application of Section 871.21 violates due process. The court notes that Plaintiff has only identified authority regarding the retroactive application of statutes in general, rather than pointing to California case law showing that retroactive application of Section 871.21 itself has been held unconstitutional. Therefore, the court declines to invalidate the application of Section 871.21 on the grounds of unconstitutionality.

Finally, Plaintiff argues that the time limits established by Section 871.21 were tolled by equitable tolling doctrines such as the delayed discovery rule. The court disagrees. Because Section 871.21 is a statute of repose, Plaintiff's lawsuit is barred after the six-year deadline regardless of whether Plaintiff has alleged facts that might otherwise extend Plaintiff's time to file under the delayed discovery rule. (See *Inco Development Corp. v.*

Superior Court (2005) 131 Cal.App.4th 1014, 1020 (“statute of repose has nothing to do with the date of injury, but bars all suits after the expiration of a specified time from the manufacture or delivery of a product or a transaction”).

Therefore, pursuant to the language of Code of Civil Procedure Section 871.21(b), Plaintiff's first three causes of action for violations of Civil Code Section 1793.2 are time-barred.

Accordingly, Defendants' Demurrer to Plaintiff's first three causes of action is SUSTAINED.

C.

Fourth Cause of Action: Breach of Implied Warranty

Next, Defendants argue that Plaintiff's fourth cause of action is time-barred because it accrued on the date Plaintiff purchased the Subject Vehicle and expired four years later on January 8, 2020, more than five years before Plaintiff filed the original complaint.

Commercial Code Section 2725 provides that “[a]n action for breach of any contract for sale must be commenced within four years after the cause of action has accrued,” and that a cause of action accrues “when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach.” (Com. Code Section 2725(1-2).) A breach of warranty occurs upon tender of delivery. (Ibid.) Accordingly, the statute of limitations for a claim alleging breach of the implied warranty of merchantability under the Song–Beverly Act is four years. (Montoya v. Ford Motor Co. (2020) 46 Cal.App.5th 493, 495.)

Section 2725(2), expressly rejects a delayed-discovery rule for warranty claims by providing that accrual occurs when the breach occurs, “regardless of the aggrieved party's lack of knowledge.” California courts have confirmed that there is ordinarily no delayed-discovery rule applicable to breach of implied warranty claims. (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 129, 134.)

Plaintiff relies on Mexia v. Rinker Boat Co. (2009) 174 Cal.App.4th 1297 to argue that an implied warranty claim does not accrue until a latent defect is discovered. The court finds that Plaintiff conflates the duration of the warranty with the accrual of the cause of action.

Civil Code Section 1791.1(c) provides that the duration of the implied warranty of merchantability shall be coextensive with an accompanying express warranty, but “in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.” In *Mexia*, the court held that the implied warranty has a limited prospective existence during that statutory duration and may be breached by a latent defect existing during that period—even if the defect is not discovered until later. (*Mexia*, supra, 174 Cal.App.4th at 1304-1306, 1311.) The court explained that in the case of a latent defect, the warranty is breached by the existence of the defect, not by its subsequent discovery. (*Id.* at 1304-1305.)

The court in *Mexia* did not alter the statute of limitations or create a delayed-discovery accrual rule for implied warranty claims, but rather quoted the language of Section 2725 and recognized that a breach of warranty occurs upon tender of delivery. (*Mexia*, supra, 174 Cal.App.4th at 1304-1305.) The court’s holding concerned the duration of the warranty, not accrual for statute-of-limitations purposes.

Therefore, the duration provision of Civil Code Section 1791.1(c) defines the period during which the implied warranty of merchantability exists and may be breached, whereas the statute of limitations set forth in Commercial Code Section 2725 defines the time within which suit must be filed after accrual of the cause of action. Pursuant to Commercial Code Section 2725, the cause of action accrues when the breach occurs (at tender of delivery), regardless of the buyer’s lack of knowledge.

Based on Plaintiff’s allegations in the FAC, delivery of the Subject Vehicle occurred on or about January 8, 2016. (FAC, ¶ 7.) Therefore, Plaintiff’s cause of action for breach of the implied warranty of merchantability accrued in January 2016, and the statute of limitations began running at that point. As a result, the statute of limitations for Plaintiff’s fourth cause of action expired on January 8, 2020, yet Plaintiff did not file the complaint until February 21, 2025, long after the statute of limitations had expired.

Accordingly, Defendants’ Demurrer to Plaintiff’s fourth cause of action is SUSTAINED.

D.

Fifth Cause of Action: Negligent Repair

In order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) A repairer is negligent if it fails to use the amount of care in repairing the product that a reasonably careful repairer would use in similar circumstances to avoid exposing others to a foreseeable risk of harm. (See CACI 1221.)

Defendants argue that Plaintiff’s fifth cause of action is barred by the economic loss rule.

“[E]conomic loss alone, without physical injury, does not amount to the type of damage that will cause a negligence...cause of action to accrue.” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) “[T]ort recovery for a breach of a contract duty is generally barred unless two conditions are satisfied.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 17, 20.) First, the plaintiff must show that the injurious conduct violated a duty independent of the duties assumed when the parties entered the contract. (*Id.* at 20-21.) Second, the injury caused must be one that was not reasonably contemplated by the parties upon contract formation. (*Id.* at 21.)

“[T]he cost of repair of a defect in a manufactured product constitutes economic loss; that loss is not recoverable in a tort action based on negligence.” (*Sacramento Regional Transit Dist. v. Grumman Flexible* (1984) 158 Cal.App.3d 289, 298.) The economic loss rule applies where a plaintiff alleges “damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837, quoting *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.)

Here, the court concludes that Plaintiff’s cause of action for Negligent Repair is barred by the economic loss rule, because Plaintiff has not alleged any personal injury or damage to property other than the Subject Vehicle. Instead, Plaintiff alleges damages pertaining to Plaintiff’s grievances regarding Defendant South Bay Ford’s contractual obligations. (FAC, ¶¶ 56-59.)

Accordingly, Defendants’ Demurrer to Plaintiff’s fifth cause of action is

SUSTAINED.

E.

Sixth Cause of Action: Fraudulent Inducement –
Concealment

To state a claim for fraudulent inducement-concealment, a plaintiff must allege: (1) the defendant “concealed or suppressed a material fact,” (2) the defendant was “under a duty to disclose the fact to the plaintiff,” (3) the defendant “intentionally concealed or suppressed the fact with the intent to defraud the plaintiff,” (4) the plaintiff was “unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact,” and (5) “as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310–11.)

Defendants argue that Plaintiff's sixth cause of action fails because Plaintiff has not alleged with sufficient particularity the defect that Defendant Ford Motor Company allegedly concealed, Plaintiff has not alleged the requisite transactional relationship to trigger a duty to disclose, Plaintiff has not alleged the Defendant Ford Motor Company had exclusive knowledge of the alleged transmission defect at the time of sale, Plaintiff has not alleged active concealment by Defendant Ford Motor Company, and Plaintiff's sixth cause of action is barred by the economic loss rule and by the applicable three-year statute of limitations.

The court first addresses Defendants' argument that Plaintiff's sixth cause of action fails because Plaintiff has not alleged a transactional relationship between Plaintiff and Defendant Ford Motor Company that is required to trigger a duty to disclose.

As is relevant here, “[a] duty to disclose a material fact can arise if ... (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40 (internal citations omitted).) These three circumstances

“presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances...Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Id. at 40-41 (internal citations omitted).)

Concealment claims are subject to the same specificity requirement as fraud claims, but plaintiffs are not required to plead how, when, where, to whom, and by what means a representation was made. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.) However, where a duty to disclose is premised on a relationship between the parties or on exclusive knowledge, the complaint must include specific allegations establishing: (1) the content of the omitted facts, (2) defendant’s awareness of their materiality, (3) the inaccessibility of the facts to plaintiff, (4) the point at which the facts should or could have been revealed, and (5) justifiable and actual reliance. (Rattagan, supra, 17 Cal.5th at 43–44.)

Here, Plaintiff alleges that Plaintiff purchased the Subject Vehicle from Defendant Ford Motor Company’s authorized retail dealership, Norm Reeves Ford Superstore. (FAC, ¶ 9.) Plaintiff alleges that before purchasing the Subject Vehicle, Plaintiff “reviewed [Defendant Ford Motor Company’s] marketing and advertising materials, viewed [Defendant Ford Motor Company’s] vehicle-specific window sticker, and took the [Subject] Vehicle for a test drive. But at no point prior to purchase was Plaintiff advised [that] the [Subject] Vehicle and its 6-speed automatic transmission were defective.” (FAC, ¶ 10.)

The court finds that Plaintiff’s allegations are insufficient to support a duty to disclose by Defendant Ford Motor Company. The California Supreme Court has recently clarified that a vehicle manufacturer is not a party to the retail sales contract between a consumer and an independent dealership. (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1128.) The manufacturer’s warranties are independent of the sales contract and arise by statute upon delivery of the vehicle. (Id. at 1135.) Because the warranties come into existence upon sale, they do not establish a preexisting transactional relationship between Defendant Ford Motor Company and Plaintiff that would be sufficient to impose a duty to disclose.

Further, Plaintiff's FAC does not allege that Defendant Ford Motor Company participated in or controlled the sales transaction, or that the dealership that sold the Subject Vehicle to Plaintiff acted as Defendant Ford Motor Company's agent for purposes of the sale of vehicles to consumers. Therefore, the instant case is distinguishable from *Dhital v. Nissan North America, Inc.*, where the plaintiffs expressly alleged that the manufacturer's authorized dealerships were its agents "for purposes of the sale of Nissan vehicles to consumers," and the court relied on those agency allegations in concluding that a sufficient buyer-seller relationship had been alleged at the pleading stage. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.) The court finds that Plaintiff has not made any comparable agency allegations in the FAC.

Although the court in *Bigler-Engler* recognized that a sufficiently misleading affirmative representation or direct consumer advertising might, in some circumstances, give rise to a duty to disclose even absent a close transactional relationship, the court finds that Plaintiff's FAC contains no allegations that Defendant Ford Motor Company made specific affirmative misrepresentations to Plaintiff or directly advertised in a manner that would trigger such an exception. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 312, 314.)

The court next addresses Defendants' argument that Plaintiff's sixth cause of action is barred by the statute of limitations.

The statute of limitations for a fraud claim is three years. (Code Civ. Proc. Section 338(d).)

"[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.) "Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.'" (*Id.* at 806.) "A plaintiff has reason to discover a cause of action when he or she 'has reason at least to suspect a factual basis for its elements.'" (*Id.* at 807.) "Under the discovery rule, suspicion of one or more of the elements of a cause of action,

coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period.” (Ibid.) A plaintiff must “must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Ibid.)

Here, Plaintiff alleges that “the running of the limitations periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, the fraudulent concealment rules, equitable estoppel, the repair rule, and/or class action tolling.” (FAC, ¶ 33.) Plaintiff further alleges that Plaintiff “discovered Defendants’ wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following [Defendant Ford Motor Company’s] unsuccessful attempts to repair them.” (FAC, ¶ 34.)

The court agrees with Defendants that Plaintiff’s allegations are conclusory, and Plaintiff has failed to allege sufficiently specific facts showing the time and manner of discovery and Plaintiff’s inability to have made earlier discovery despite reasonable diligence. (Fox, supra, 35 Cal.4th at 807.)

Therefore, given that Plaintiff filed the original complaint on February 21, 2025, the court finds that Plaintiff’s sixth cause of action is time-barred.

Because Plaintiff has failed to allege a transactional relationship giving rise to a duty to disclose and due to the applicable statute of limitations, Defendants’ Demurrer to Plaintiff’s sixth cause of action is SUSTAINED. Given that the court has sustained Defendants’ Demurrer on these grounds, the court declines to address Defendants’ argument regarding the economic loss rule.

F.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Because the court has found that Plaintiff's first four causes of action and sixth cause of action are time-barred, the court finds that there is no reasonable possibility of successful amendment by Plaintiff. As to Plaintiff's fifth and sixth causes of action, the court additionally notes that Plaintiff has already amended the complaint once and finds that Plaintiff has not sufficiently demonstrated that the FAC can be successfully amended to state causes of action for Negligent Repair and Fraudulent Inducement – Concealment.

Accordingly, the court DENIES leave to amend as to the entirety of Plaintiff's FAC.

CONCLUSION

Based on the foregoing, Defendants' Demurrer to Plaintiff's FAC is SUSTAINED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.